

AI AND SENTENCING CRIMINALS

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INTRODUCTION TO AI IN SENTENCING

AI supports sentencing decisions by estimating the likelihood a convicted person will reoffend and reviewing similar criminal cases to suggest outcomes

Judges incorporate AI recommendations alongside

- *The prosecutor and defense arguments*
- *The character of the convicted individual*
- *Any unusual circumstances in the case*

Advantages: *better consistency and reduced human bias*

Risks: *racial bias, oversimplification, reduced judicial discretion*

CASE STUDY

Developing an AI system to help judges in sentencing

- Analyze characteristics of crimes and criminals
- Identify similar past cases for review
- Decide whether to display cases, recommend sentences, or both

Understand

- The input from judges and lawyers are still important due to experience and knowledge
- Ordering of similar cases can affect perceptions
- System must comply with legal sentencing requirements

BRAINSTORM

Stakeholders

Judges, defendants, prosecutors, defense attorneys, society, software developers

Risks and Issues

- Racial bias in AI predictions
- Over reliance on AI recommendations
- Misinterpretation of case or sentencing patterns

Benefits

- Faster process and reduced human error or fatigue
- Better consistency in sentencing decisions

Possible Actions

- System only allows AI to display similar cases, not a full interpretation of the case itself
- AI provides case suggestions and recommended sentences

ANALYSIS

Responsibilities

Decision making must be fair and comply with the law

Ethical Frameworks Applied

- Kant: respect human dignity and avoid using individuals as a means to an end
- Mill: maximize overall societal benefit
- Rawls: ensure a fair and just system for all stakeholders

Rights of Stakeholders

- Defendant's rights to a fair trial and unbiased sentencing
- Judge's right to exercise discretion

Categorization

- Ethically Prohibited: allow AI to override human judgment
- Ethically Acceptable: AI displays cases and suggests sentences with judge discretion

CASE STUDY CONCLUSION

AI can enhance sentencing decisions but cannot replace human judgment.

Ethical development requires

- *Compliance with laws and ethical codes*
- *Continuous oversight to prevent bias*

AI in sentencing criminals reduces bias, creates consistency, and supports judicial decision making without replacing it